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Contract for accreditation as an

iSAQB® Accredited Training Provider

In Process

iSAQB®
International Software Architecture Qualification Board

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Contract for accreditation as iSAQB® Accredited Training Provider

iSAQB GmbH
International Software Architecture Qualification Board

represented by its Managing Director Mirko Hillert
Feuerbachstrasse 6
14471 Potsdam
Germany

- hereinafter referred to as "iSAQB" -

In Process

and

Cube Engineering S.r.l.
Via Venti Settembre 118
00187 Rome
Italy

- hereinafter referred to as "Training Provider" -

conclude the following

Contract for accreditation as iSAQB® Accredited Training Provider

- hereinafter referred to as "Accreditation Contract" -

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Preamble

The iSAQB is committed to the promotion of vocational education and training. The particular aim is to standardize the training as **Certified Professional for Software Architecture** (hereinafter referred to as "**CPSA**"). The basis for this is the CPSA model developed by the iSAQB, which represents an international standard for the training and further professional development of software architects. The model defines consecutive training levels (CPSA-F - Foundation Level; CPSA-A - Advanced Level), where each level can be identified and subdivided by syllabi. At the end of each individual level, an exam can be taken that tests proficiency in the contents of the individual syllabus and the corresponding learning objectives.

The sole shareholder of iSAQB GmbH is the iSAQB e. V. The iSAQB e. V. is the author of the syllabi required for CPSA training and of all examination documents. These are updated regularly by the association. The iSAQB e. V. has authorized and commissioned iSAQB GmbH to implement the accreditation program and to grant all necessary rights and licenses.

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With the following contract, the parties regulate rights and obligations resulting from the accreditation as iSAQB® Accredited Training Provider.

Section 1 Definitions and Object of the Accreditation Contract

The iSAQB uses an accreditation system to ensure the content and didactic competence of training providers. CPSA training may only take place in combination with the following three accreditations. If one of the three accreditations is missing, CPSA training cannot be carried out.

1. iSAQB® Accredited Training Provider
2. iSAQB® Accredited Trainer
3. iSAQB® Accredited Training

1. iSAQB®- Accredited Training Provider

A training provider can only be a natural or legal person whose professional practice and/or business purpose relates to software consultancy, software development ("software architecture") or IT topics in general. Training providers may, if they do not have their own accredited training courses, commission other training providers accredited by iSAQB to conduct CPSA training courses if the commissioned training providers can provide accredited CPSA training courses.

An initial accreditation of a training provider can take place once evidence has been provided that the training provider is professionally qualified to conduct CPSA training.

An accredited training provider is entitled to use the designation and logo "iSAQB® Accredited Training Provider".

2. iSAQB® Accredited Trainer

Training Providers may organise and conduct CPSA Training only with iSAQB® Accredited Trainers. Training Providers must apply to iSAQB for accreditation for all trainers employed by and cooperating with the Training Provider who wish to conduct CPSA training for the Training Provider.

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An employed Trainer retains his accreditation if he leaves the company of the Training Provider. The Accredited Trainer can continue to conduct CPSA Training once he regains access to accredited training material (training), either by becoming an Accredited Training Provider himself and having at least one CPSA training accredited for himself, or by cooperating with or being employed by another training provider with accredited training courses. The iSAQB expects Accredited Trainers to conduct at least one CPSA training course per year.

Accredited Trainers receive an accreditation certificate confirming their accreditation. Training providers may use the title and logo "iSAQB® Accredited Trainer" for all iSAQB-accredited trainers. The Accredited Trainer himself is also entitled to use the logo and the title for his own marketing (e.g., his own website, print materials, etc.). An iSAQB® Accredited Trainer is not authorized to use other iSAQB® logo brands. He is also not permitted to offer, organize, and market CPSA training directly. This is reserved exclusively for accredited training providers.

Accreditation of a trainer is based on the following criteria:

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CPSA-Foundation Level

a) A trainer must demonstrate at least three years of experience in software architecture (an exception to this rule applies to trainer accreditations in the SOFT module). The content-related and didactic competence must be demonstrated by reference projects and trainer profiles and, if necessary, be verifiable with named reference persons.

b) A trainer must have access to iSAQB-accredited training material.

c) A CPSA-F certification examination must have been successfully completed.

d) A technical interview with iSAQB experts must be completed successfully. This must be done in a personal conversation (by telephone, Skype, or similar).

CPSA-Advanced Level

all prerequisites as in Foundation level, additionally:

a) A certification exam for CPSA-A is not a prerequisite for accreditation as a trainer for Advanced Modules but is recommended.

b) The trainer must have attended the respective Advanced Module for which he wants to be accredited and knows the current syllabus. Alternatively, he/she may have developed the accredited examination/training materials.

3. iSAQB® Accredited Training

Each CPSA training course must be accredited by the iSAQB prior to implementation. For this purpose, the iSAQB performs a one-time audit of the associated training material. The accreditation process can be shortened by presenting already accredited training material that the Training Provider receives from another accredited training provider for comprehensive use. If already

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accredited training material is submitted, the accreditation fee is reduced according to the current fee schedule. All submitted training materials are subject to strict data protection during and after the accreditation process and will only be made available to those persons within the iSAQB who have been appointed to carry out the review.

The accreditation of training material and, thus, of a training course is permanent. For an accredited training course, the Training Provider is entitled to use the designation and logos "iSAQB® Accredited Training" or "iSAQB® Accredited x...Training" (e.g., iSAQB® Accredited SOFT Training," "iSAQB® Accredited FUNAR Training," iSAQB® Accredited FLEX Training").

The submitted training materials should usually include a set of slides, handouts, and exercises. Deviating from this, the submission may contain less or different materials than those mentioned, for example for training concepts with flipchart techniques. In these cases, trainers also have to prove that the training courses correspond to the required quality level.

Section 2 Necessity of Accreditation

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The Training Provider is only entitled to use the protected logos developed by the iSAQB, the syllabi developed for the preparation and implementation of CPSA training measures as well as the marketing documents for training courses developed and made available by the iSAQB to the extent that and as long as a corresponding user license has been granted within the scope regulated in this Accreditation Contract. Upon the expiry of the license, the right to use the following contractual objects also ends:

a) The syllabi developed and published by the iSAQB e. V. for the development and implementation of CPSA training measures.

b) The logos developed and continuously used by the iSAQB.

c) The latest marketing documents prepared and provided by the iSAQB.

Section 3 Use of Contract Marks and Other Materials

With this accreditation contract, the iSAQB grants the licensee a simple, non-exclusive license limited to the term of this contract for the use of the contractual objects defined under Section 2 (syllabi, marketing documents, and the national and international logos or trademarks protected in the name of the iSAQB).

a) The simple brand use license granted with this license agreement entitles the Training Provider to use the contractual brands for advertising the training courses it organizes or conducts on brochures, leaflets, flyers, and online.

b) The registration of an internet domain of any kind, be it for the top-level domains of the countries of the European Community or for other international top-level domains using the contract marks in whole or in part, is not included in this contractually granted simple user license and is not permitted. The iSAQB also does not permit the Training Provider to register contract marks as part of one of the aforementioned internet domains with the addition of its own name or another name

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or to use these in part or in whole for the registration of new national and/or international trademark rights.

c) The Training Provider is not entitled to grant sublicences of the contract marks to third parties.

d) The Training Provider undertakes to use the contract marks only in the registered form. In addition, it undertakes to affix the registration mark "®" to the trademarks. The iSAQB, in turn, undertakes to maintain the contract marks.

e) The Training Provider undertakes to observe the design rules of the "Logo manual" (**Appendix A**) made available to it and to use the contract marks in accordance with the design rules specified therein. The same also applies to forwarding to a graphic designer or printer. The same applies to the corresponding use of those trademarks containing the component "iSAQB".

f) The Training Provider recognizes the iSAQB's rights to the contract marks and undertakes not to infringe the rights to the contract marks in any way. Any use of the contract marks by the Training Provider is deemed to be used by the iSAQB. The Training Provider, therefore, does not acquire the right to have the logo and/or the lettering of the iSAQB contract marks protected by trademark law as a result, whether alone or together with other components.

g) On termination of the accreditation contract, the Training Provider loses all rights of use to the contract marks. It undertakes to return all documents, training documents, seminar brochures, flyers, and print materials still bearing the contract marks to the iSAQB, or to declare and verify their destruction. In addition, it will immediately remove all images of the contract marks on the internet or on online channels.

Section 4 Tasks and Duties of the iSAQB

a) At the request of the Training Provider, the iSAQB publishes the Training Provider's logo or company logo on its homepage. The Training Provider grants the iSAQB the necessary rights for this.

b) Training dates of the Training Provider can be published on a calendar on the iSAQB website. The iSAQB also forwards requests for training and in-house courses to all accredited training providers.

c) The iSAQB undertakes to update the syllabi provided on an ongoing basis and to keep them up to date with the latest national and international standards. The iSAQB will inform the Training Provider of such changes as soon as possible but no later than 3 (three) months before the updated syllabus comes into force. In the case of extensive changes of more than 50 (fifty) percent of the examination-relevant syllabus for levels CPSA-F and CPSA-A, this period is extended to 6 (six) months. The information is provided through suitable communication channels (website, e-mail, etc.).

d) The Training Provider has the right to arrange CPSA exams with certification bodies licensed by the iSAQB. All licensed certification bodies are published on the iSAQB website. The Training Provider and the certification body may not have any commercial or legal connections regarding CPSA training, neither directly nor through third parties, other than commissioning examinations.

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In particular, the Training Provider may not use certification bodies or persons working for certification bodies as trainers, training providers, or marketers for CPSA training. Existing connections must be reported immediately to the iSAQB. A breach of this provision may result in the immediate termination of this accreditation contract.

Section 5 Tasks and Duties of the Training Provider

The Training Provider undertakes to observe the principles of quality with regard to content, personnel, and organisation within the framework of the following regulations:

a) The Training Provider undertakes to organise and conduct CPSA training courses solely with iSAQB-accredited trainers (iSAQB® Accredited Trainers). The Training Provider also undertakes to use only training materials accredited by iSAQB for CPSA training courses (iSAQB® Accredited Training).

b) The Training Provider undertakes to maintain confidentiality with regard to Foundation Level examination questions and Advanced Level examination tasks that have become known to it. The Training Provider will only make the examination questions available to examination candidates and examiners within the framework of an examination.

c) The Training Provider undertakes to ensure that its CPSA training courses, including its trainers, are verifiable by the neutral iSAQB audit working group. No specific reason is required for this. Above-average failure rates and complaints may be an indicator for the iSAQB to conduct an audit. The Training Provider grants the audit working group the right to observe its CPSA courses. The two auditors sent by the iSAQB are treated as training participants for the duration of one day. The iSAQB informs the Training Provider in writing by post or e-mail at least one month in advance of the audit date. If the conditions found by the auditors at the Training Provider fail to meet the quality requirements of the iSAQB, the Training Provider will be notified in writing of these defects and will be required to remedy the listed defects within a period of 90 (ninety) calendar days. The Training Provider bears the costs of remedying the defects listed by the iSAQB. Upon written or oral request, the Training Provider must give the iSAQB the opportunity to ascertain the conclusive elimination of the defects. If the iSAQB determines in the course of this that the defects still exist in whole or in part, the iSAQB will inform the Training Provider in writing that no CPSA training courses may be offered by the Training Provider until the defects have been conclusively remedied. This prohibition is only lifted once the Training Provider has provided evidence, independently and at its own expense, that all defects recorded in writing by the iSAQB have been remedied.

d) For Advanced Level training courses, it is only possible to award participation certificates with the intended credit points if a participant has attended at least 75 (seventy-five) percent of the training course. If less than this amount of time has been completed, the credit points may not be awarded. The whole training course or the missing part must be retaken in order to obtain the credit points. This regulation applies in any case (e.g. also for reasons which are not the fault of the participant, such as illness, accidents, traffic jams, etc.).

e) The Training Provider undertakes to adhere to a maximum number of 12 (twelve) participants per CPSA training course in order to ensure optimum support of the participants by the trainer. If a

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training course is conducted by two trainers at the same time, the maximum number of participants can be increased to 24 (twenty-four).

Section 6 Neutrality

The iSAQB undertakes to treat all contractually bound training providers equally. The iSAQB will not promote, advertise or otherwise favor any particular training provider. Individual training providers and their employed or cooperating trainers may be commissioned or used for professional publications (e.g. interviews, blog posts) for the purpose of general marketing in the iSAQB.

Section 7 Copyright and Rights of Use

The iSAQB holds all copyrights, other protective rights, and rights of use to the syllabi, logos/trademarks, marketing documents, and examination documents that are the subject of this accreditation contract. The iSAQB has informed the Training Provider that it also grants corresponding rights of use to other training providers; these are not exclusive rights.

Section 8 Remuneration and Terms of Payment

The iSAQB charges accreditation fees for the granting of the rights of use. The following conditions are agreed:

a) Annual accreditation fee for Training Providers

- The Training Provider pays an annual accreditation fee to the iSAQB.
- The annual accreditation fee is **500.00 Euros in 2026 and in 2027 and 1,000.00 Euros** per calendar year **starting in 2028**.
- This fee is charged regardless of the type and number of CPSA training courses conducted per calendar year.
- Accreditation fees are payable in advance for each calendar year.
- Invoicing is always carried out in January.
- The first billing starts in January 2026.

b) Accreditation fee for Trainers

Training providers can apply for 6 trainer accreditations per calendar year free of charge. From the 7th trainer accreditation on, 400.00 Euros per accreditation will be charged.

c) Accreditation fee for Training Courses

The Training Provider receives already accredited and complete CPSA training material for the Foundation Level free of charge.

For accreditations of Advanced Level training courses, Training Providers must submit their materials, slides, and exercises for review and evaluation. A fee of **1,450.00 Euros** (3 days training course) or **1,250.00 Euros** (2 days training course) per training course is charged for this.

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Section 9 Licence Contract Territory

The license granted to the Training Provider by the iSAQB within the framework of this accreditation contract is valid worldwide.

Section 10 Improvements and Further Developments by the Training Provider

a) The Training Provider undertakes to notify the iSAQB immediately of any suggestions for improvement or further development of the syllabi.

b) If suggestions for improvement and further development, examination questions or examination tasks from Training Providers are incorporated into future syllabi and other documents of the iSAQB, the copyrights, other protective rights, and performance rights to the syllabi and other documents remain the unrestricted property of the iSAQB and may become part of this accreditation contract. Remuneration claims for suggestions for improvement and further development made by the Training Provider are precluded.

Section 11 Liability

a) The iSAQB does not assume any guarantee or liability that the training materials provided by the Training Provider on the basis of the iSAQB syllabi will result in successful CPSA training.

b) The Training Provider exempts the iSAQB from liability towards the training participants trained by it to become CPSA, insofar as this is not based on intent or gross negligence on the part of the iSAQB.

c) The mutual liability between the parties is limited to cases of intent and gross negligence. This does not apply to damage to life, limb, or health.

Section 12 Infringements of Rights by Third Parties

The parties agree and undertake to inform each other immediately if they become aware of any infringement by third parties of the rights that are the object of this accreditation contract. The Training Provider undertakes to carry out the necessary actions against possible infringements and/or to procure and provide the iSAQB with the documents required for the conduct of infringement proceedings and to carry out the actions necessary for the conduct of proceedings.

Section 13 Confidentiality, Data Protection

a) The Training Provider undertakes to treat all documents, data, or information provided by the iSAQB within the framework of this accreditation contract, whether in electronic or paper form (confidential data), as strictly confidential and to protect them from access by third parties. The Training Provider's duty of confidentiality remains in force even after termination of the contract.

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b) The Training Provider undertakes to impose the same obligations on its employees or agents. The confidentiality obligation for the employees of the Training Provider must also be imposed for the time after the termination of the employment contract. The Training Provider will only disclose confidential data to those persons who have committed themselves in the same way.

c) Excluded from this are only those data explicitly marked as "public" or published by the iSAQB at the time of transfer or published at a later date or otherwise publicly known.

d) The parties mutually undertake to observe all relevant data protection regulations.

Section 14 Assignment and Sublicensing

The Training Provider is not entitled to assign the rights arising from this accreditation contract or to grant sublicenses without the prior written consent of the iSAQB. The Training Provider has no inherent claim to such consent being given by the iSAQB.

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Section 15 Contract Term and Termination

a) This accreditation contract comes into force when signed by both parties. The term of the accreditation contract is initially agreed to be a period of one year from the signing of this contract by the last signing party.

b) Both parties have the right to terminate this accreditation contract without giving reasons with a notice period of 3 (three) months to the end of the contract period. Unless one of the parties terminates the contract, the contract is extended by a further year. Notice of termination must be given in writing. Receipt of the notice of termination by the notice recipient is decisive for compliance with the notice period.

c) If a party is in breach of the provisions of this accreditation contract, the party acting in conformity with the contract has the right to terminate this accreditation contract in writing within 2 (two) weeks of becoming aware of the breach with a notice period of a further 2 (two) weeks. Such a termination only becomes effective if the party committing the breach of contract fails to remedy the breach of contract within the notice period of 2 (two) weeks. If the party breaching the accreditation contract has demonstrably remedied the breach, the accreditation contract remains in force with no termination.

d) If one party breaches essential contractual obligations, the other party has the right to terminate this accreditation contract for cause. The accreditation contract then ends within a period of 2 (two) weeks from receipt of the extraordinary termination. It is at the discretion of the iSAQB® to publish a justified extraordinary termination also publicly to affected institutions (other national boards, certification bodies, etc.).

Reasons for an early termination of the accreditation contract for cause include in particular:

(1) The Training Provider is more than 4 (four) weeks in arrears with the payment of an annual fee due or exceeds the payment terms of iSAQB invoices twice or more within two calendar years.

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(2) The Training Provider conducts or markets CPSA training courses for which there is no iSAQB accreditation.

(3) The Training Provider conducts CPSA training courses without iSAQB-accredited trainers.

(4) The Training Provider refuses to be audited by the iSAQB audit working group.

(5) The Training Provider and/or the iSAQB has been liquidated or has been removed from the Commercial Register or the Register of Associations.

(6) The Training Provider demonstrably infringes copyrights, other protective rights, and rights of use of the iSAQB.

(7) The Training Provider registers the iSAQB logo and/or the designation CPSA and/or Certified Professional for Software Architecture as a national or international trademark in its own name without the consent of the iSAQB.

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(8) The Training Provider and/or the iSAQB suffer serious financial difficulties. This is the case if insolvency proceedings have been instituted against the assets of the Training Provider and/or the iSAQB or if such proceedings have been rejected for lack of assets.

(9) The Training Provider and a certification body have a commercial or legal connection other than the commissioning to conduct exams, which has not been disclosed to the iSAQB.

Section 16 Miscellaneous

a) This accreditation contract is subject to German law. The sole place of jurisdiction for all disputes arising from or in connection with this accreditation contract is Potsdam, insofar as this agreement on the place of jurisdiction is admissible under the statutory provisions.

b) Oral collateral agreements, contract amendments, and supplements must be in writing in order to be effective. This also applies to changes to this written form requirement.

Section 17 Severability Clause

Should any provision of this accreditation contract be or become invalid or unenforceable, this will not affect the remaining provisions of this accreditation contract. The parties agree to replace the invalid or unenforceable provision with a valid and enforceable provision that comes closest to the economic intent of the parties. The same applies in the event that the provisions of this contract contain a gap not intended by the contracting parties.

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Appendix	Document	Type
A	Logo manual	Appendix A in a separate document

.....	.....
Place, date	Place, date
(Signature iSAQB)	(Signature Training Provider)
Mirko Hillert, Managing Director	Patrick Serra, Director
(Name and role of signatory)	(Name and role of signatory)

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